

SOCHUM Study Guide

Agenda A: The Right to Be Human: Protecting Human Dignity Against Artificial Intelligence

Mandate

Introduction to the Agenda

1. Key Terms and Definitions
2. Historical Background
3. Root Causes of AI Related Human Rights Risks
4. Human Rights and Human Dignity in the Age of Artificial Intelligence
 - 4.1 Privacy and Personal Data
 - 4.2 Bias and Discrimination
 - 4.3 Surveillance and Biometric Technologies
 - 4.4 Human Autonomy and Dependency on Artificial Intelligence
 - 4.5 Artificial Intelligence in High Stakes Decisions
5. Accountability, Transparency and Human Oversight
6. International Legal Framework and United Nations Response
7. Case Studies
 - 7.1 Dutch Childcare Benefits Scandal
 - 7.2 Clearview AI and Facial Recognition
 - 7.3 Generative AI and Deepfake Abuse
8. QARMA
9. Bibliography

Mandate

Social, Humanitarian, and Cultural Committee (SOCHUM), which is also called the Third Committee of the United Nations General Assembly, was created in 1945 and takes up the issues of social, humanitarian and human rights concern to people all over the world. This committee is the key discussion venue of the General Assembly on matters relating to human rights, social development, humanitarian and human rights issues, and vulnerable groups of population. The topics addressed by this body include the right to life, freedom of expression, equality and non-discrimination, women's and children's rights, disabled people's rights, and protection of individuals that face situations of conflict, displacement, crime, and other humanitarian crises.

Since SOCHUM is a General Assembly committee, not an enforcement agency, the resolutions adopted by this body are not obligatory, which means that there is no way to make Member States to comply with them. Nevertheless, the resolutions of SOCHUM may become obligatory norms and practices under the international law if these documents receive wide support from the international community. Resolutions of this body may also serve as a motivation to the states to adopt certain policies, promote international cooperation.

SOCHUM may make use of information and recommendations provided by the Special Procedures of the Human Rights Council which include Special Rapporteurs, Independent Experts, and Working Groups. Information may be drawn on from reports of UN treaty bodies, specialized agencies, funds and programs, and international organizations where relevant. This information and recommendations may help to formulate negotiations and add to the content of resolutions adopted by the committee.

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All 193 member States of the United Nations have the right to participate in the activities of SOCHUM and have one vote per Member State. Draft resolutions adopted by the committee are referred to the General Assembly for consideration and adoption. Through its recommendations and international standard setting, SOCHUM supports the wider UN system by helping promote cooperation and enhance the protection of human dignity, fundamental freedoms, and human rights around the world.

Introduction to the Agenda

Artificial intelligence technology has grown significantly, from being a specialized field of science to becoming an influential factor in today's society. In health care, education, work, communications, security, and governance, AI technologies have gained influence in decision-making processes, which impact people's lives directly. Such development brings up a new problem for the international community to make sure technological development does not contradict the principles of human dignity and fundamental human rights.

The topic "The Right to Be Human: Protection of Human Dignity from Artificial Intelligence" deals with the connection between AI technologies and fundamental rights of a person. As the capabilities of AI technologies increase in terms of information processing, recognition of a person, production of content and decision making, issues of privacy, equality, freedom of speech, non-discrimination, autonomy, and responsibility emerge.

Increased reliance on AI, however, gives rise to other types of risks. Algorithmic discrimination, for instance, may be used to maintain pre-existing inequalities, while automated decision-making may affect individuals without adequate transparency and oversight mechanisms. Collection of personal data becomes a matter of concern with regard to privacy, whereas face recognition and AI surveillance pose challenges to the concept of personal autonomy. Generative AI, deepfakes, and synthetic media present issues related to identity, mis/disinformation, and public trust.

At the same time, AI offers great potential to facilitate human development. It has applications in providing access to healthcare services and educational materials, advancing scientific research, increasing efficiency, and addressing global challenges. Thus, the goal of the international community is not to limit technological progress but to find common principles under which innovation will evolve alongside the respect for human rights.

The agenda, therefore, discusses the possibilities of international cooperation in ensuring responsible, transparent, inclusive, and human-centred AI. Human dignity is placed at the core of technological development and questions are raised as to how international cooperation may allow maintaining AI as a means of advancing human well-being and not as a tool determining worthiness, rights, and freedom of affected individuals.

1. Key Terms and Definitions

1. Human Dignity: The inherent value of each person and the need to treat every individual with respect. In the context of artificial intelligence this implies that one should not be reduced to merely an object or a score.

2. International Human Rights Law: The body of international and regional treaties, agreements and principles that protect fundamental human rights and continue to apply when those rights are affected by technologies such as artificial intelligence.

3. Human Autonomy: The ability of individuals to act independently and make their own decisions, which can be affected by an overreliance on AI.

4. Automated Decision Making: The application of AI systems to make or support legal or administrative decisions about individuals in areas such as jobs, education, healthcare, social security, policing, crime prevention, migration and asylum.

5. Algorithmic Discrimination: The use of AI which results in discrimination against individuals or groups, for instance, when vulnerable groups are disproportionately affected by algorithmic decision-making processes.

6. Data Privacy: The right of individuals to have their personal data collected, accessed, processed, stored and shared in a lawful, secure and responsible manner, while being protected from unauthorized or unjustified use.

7. Deepfakes and Synthetic Media: AI-generated or manipulated material, such as images, audio or video, which can depict a person or a situation, and can be used for deceptive, malicious or fraudulent reasons.

8. Transparency: A key principle of AI governance which requires that individuals and entities are aware of when and how AI is being used and how it may impact their decisions or rights.

9. Accountability: An AI governance principle which requires that states, entities and individuals involved in the development and application of AI systems are answerable for the effects of their actions and omissions on individuals and societies.

10. Human Oversight: An essential element of AI governance which requires humans to have a meaningful role in deciding whether, how and when an AI system should be used, and whether a decision made or recommended by the system should be implemented.

11. Right to a Remedy: A fundamental human right which allows individuals whose rights have been violated to challenge such a violation and gain access to a remedy or redress.

12. AI Governance: A set of laws, policies, and regulatory and institutional frameworks which guide the development and use of AI.

13. Digital and AI Divide: The unequal access to AI technologies, digital infrastructure, skills, resources and opportunities between different countries and communities, particularly between developed and developing States.

2. Historical Background:

Human rights and artificial intelligence are inextricably linked as artificial intelligence has developed into a technology that increasingly affects social relations and people's lives. Although many foundational instruments of international human rights law, including the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights, were adopted decades ago, the principles they establish remain relevant in the age of information technology. In particular, rights related to personal privacy, equality, and liberty may increasingly be affected or infringed by automated systems in ways detrimental to social groups and even individuals.

As the use of machine learning, language models, or other artificial intelligence systems continues to expand, the focus of debate shifts from technological progress to ethical issues. Such learning tools are now used in employment, healthcare, migration, social services, law enforcement, and other spheres of life. As a result, it is necessary to re-evaluate how existing human rights protections apply in the context of automation and ensure that its implementation does not eliminate the responsibility of a human actor.

3. Root Causes of AI Related Human Rights Risks:

The main source of AI related human rights issues stems from the technology's reliance on big data in the decision-making process. Since automated systems learn primarily from existing patterns, the resulting bias may translate into discriminatory or disproportionate outcomes for less privileged groups. At the same time, the use of algorithms that do not provide clear explanations for their decisions may lead to people being deprived of their rights without an opportunity to challenge them effectively.

Another source of human rights infringements stems from the fact that data about personal behavior and identifying features now serve as the basis for automation. The use of biometrics, behavioral patterns, and other sensitive information in the training or operation of AI systems may undermine several key principles of human rights law, including privacy, liberty, and security. One of the most pressing issues in this area is the use of such personal data in high-risk domains, including healthcare and law enforcement. Combined with insufficient regulatory oversight, automation may lead to serious infringements of people's rights and freedoms, and may even place lives at risk.

4. Human Rights and Human Dignity in the Age of Artificial Intelligence:

Human dignity is the foundation of international human rights law and is based on the idea that every person possesses inherent worth, regardless of nationality, gender, race, economic status or technological ability. Artificial intelligence becomes a human rights concern when individuals are treated mainly as data, risk scores or predictions rather than as people whose circumstances deserve individual consideration. AI systems can influence access to employment, education, healthcare, public benefits and information, meaning that decisions made through technology may directly affect a person's opportunities and freedoms.

At the same time, artificial intelligence should not be viewed only as a threat. AI can improve access to healthcare, assist persons with disabilities, support education, increase access to information and make public services more efficient. The concern for SOCHUM is therefore not whether AI should be stopped, but how it can be used without weakening human dignity. The committee must consider whether individuals remain informed, whether they can challenge harmful decisions, whether discrimination is prevented and whether human responsibility remains present when AI is used in important areas of life.

The debate also concerns the balance between technological progress and existing human rights obligations. Rights protected under instruments such as the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights continue to apply even when technology is involved. States therefore remain responsible for protecting privacy, equality, personal freedom and access to fair procedures, regardless of whether a decision is made directly by a human or supported by an automated system.

4.1 Privacy and Personal Data:

Artificial intelligence depends heavily on large amounts of personal data. This may include information about a person's location, health, finances, online activity, education, employment, or communications. When such information is collected or used without clear consent, individuals may lose control over their personal lives. This creates concerns under the right to privacy, particularly when people are unaware that their data is being used to train AI systems or make decisions about them.

The concern becomes greater when AI combines different types of information to create detailed profiles or predict a person's behaviour. Governments and companies may use these profiles for advertising, security, public services, or automated decisions. SOCHUM must therefore consider how personal data can be protected through clear consent, limited collection, secure storage, and stronger safeguards for sensitive information such as medical, biometric, and children's data.

4.2 Bias and Discrimination

AI systems are often considered neutral because they rely on data and mathematical models. However, the data used to train them may contain existing social inequalities or

past discrimination. If an AI system learns from biased information, it may repeat those patterns when making decisions about employment, education, loans, welfare, policing, or other important opportunities.

Discrimination can also occur when certain groups are poorly represented in the data used to develop an AI system. This may cause the system to perform less accurately for minorities, women, persons with disabilities, or other communities. Since equality and freedom from discrimination are basic human rights, States must ensure that AI systems are regularly tested, monitored, and corrected when they produce unfair outcomes.

4.3 Surveillance and Biometric Technologies

Artificial intelligence has greatly increased the ability of governments and private institutions to identify and monitor individuals. Technologies such as facial recognition, voice recognition, fingerprint scanning, and behavioural analysis can support security and identification, but they can allow the tracking of people on a large scale without their knowledge or consent.

Excessive surveillance may affect not only privacy but also freedom of expression, assembly, and political participation. People may avoid protests, meetings, or other lawful activities if they believe they are constantly being monitored. SOCHUM must therefore consider whether the use of biometric surveillance is necessary, proportionate, and properly supervised, as well as how collected information is stored, accessed, and protected from misuse.

4.4 Human Autonomy and Dependency on Artificial Intelligence

Human autonomy refers to a person's ability to think independently and make decisions about their own life. As AI becomes more widely used for education, work, communication, recommendations, and personal advice, people may begin relying on automated systems for decisions they previously made themselves. This creates concern that excessive dependence on AI could gradually weaken independent judgement and personal control.

Another concern is that people may trust AI results simply because they appear objective or advanced, even when the system is inaccurate. Recommendation systems can also influence what people read, watch, or believe by controlling the information presented to them. Protecting human dignity therefore requires AI to remain a tool that supports human judgement rather than replacing it, particularly when decisions affect a person's rights, opportunities, or future.

4.5 Artificial Intelligence in High Stakes Decisions:

Artificial intelligence is increasingly being used in situations where errors can have serious consequences for a person's health, safety, or future. In healthcare, AI may assist doctors in diagnosing illnesses, analysing medical scans, or deciding which patients require urgent treatment. These systems can improve speed and accuracy, but incorrect or incomplete

recommendations may place patients at risk. This raises an important question of whether AI should only support human professionals or whether it should ever be allowed to make critical decisions without meaningful human review.

High stakes decisions can also involve education, emergency response, financial services, and other areas that strongly affect an individual's opportunities and wellbeing. When people become highly dependent on automated recommendations, responsibility may become unclear if something goes wrong. For SOCHUM, the key concern is ensuring that decisions with serious human consequences remain transparent, open to review, and ultimately subject to human responsibility rather than being left entirely to automated systems.

5. Accountability, Transparency and Human Oversight:

As artificial intelligence becomes involved in decisions that affect people's rights and opportunities, questions of responsibility become increasingly important. AI systems may be designed by one company, operated by another institution, and used by governments or private organizations, making it difficult to determine who should be held responsible when harm occurs. Transparency is therefore essential so that individuals know when AI is being used, understand its role in important decisions, and are able to question outcomes that may be inaccurate or unfair.

Human oversight is equally important because automated systems should not remove human responsibility from decisions with serious consequences. Meaningful oversight requires more than simply having a person approve an AI recommendation. Humans must be able to review the reasoning, correct errors, and reverse decisions when necessary.

6. International Legal Framework and United Nations Response:

1. UNESCO Recommendation on the Ethics of Artificial Intelligence, 2021:

Adopted by UNESCO Member States as the first global standard specifically focused on AI ethics. It places human dignity and human rights at the centre of AI governance and emphasizes transparency, fairness, accountability and human oversight.

2. UN General Assembly Resolution 78/265, 2024:

This was the General Assembly's first resolution specifically focused on artificial intelligence. It promotes the development of safe, secure and trustworthy AI systems and encourages international cooperation on AI governance.

3. UN General Assembly Resolution 78/311, 2024:

Focuses specifically on strengthening international cooperation and capacity building in artificial intelligence. It is especially relevant to developing countries because it addresses unequal access to AI technology, infrastructure, knowledge and skills.

4. **Council of Europe Framework Convention on Artificial Intelligence, Human Rights, Democracy and the Rule of Law, 2024:**

The first international legally binding treaty specifically concerning artificial intelligence. It requires activities involving AI systems to remain consistent with human rights, democracy and the rule of law.

5. **UN General Assembly Resolution 79/325, 2025:**

Established the Independent International Scientific Panel on Artificial Intelligence and the Global Dialogue on Artificial Intelligence Governance. These mechanisms created a more permanent UN structure for discussing AI governance, human rights, transparency, accountability and human oversight.

6. **Global Dialogue on Artificial Intelligence Governance:**

The first annual Dialogue was held in Geneva in July 2026. It brings UN Member States together with other stakeholders to discuss AI governance, including human rights, transparency, accountability, safety and human oversight.

7. Case Studies

7.1 Dutch Childcare Benefits Scandal

The Dutch childcare benefits scandal showed how automated risk systems can cause serious harm when they are used without sufficient transparency or human review. Thousands of families were wrongly accused of fraud and ordered to repay large amounts of money, with many suffering severe financial and personal consequences. The case became especially controversial because individuals with dual nationality were disproportionately targeted during parts of the risk assessment process.

This case is relevant to SOCHUM because it demonstrates how automated decision making can affect equality, privacy, due process and human dignity. It also shows that even when technology is introduced to improve efficiency, weak oversight and poor accountability can turn automated systems into a source of injustice.

7.2 Clearview AI and Facial Recognition

Clearview AI developed facial recognition technology using a very large database of images collected from the internet. The system has been used by law enforcement and other organizations to identify individuals from photographs. Its practices have faced legal challenges and action from data protection authorities because many individuals whose images were collected had not knowingly agreed to their use.

The case highlights the conflict between technological capability and the right to privacy. Facial recognition may assist security and investigations, but the mass collection of biometric information can also create powerful systems of surveillance. For SOCHUM, the case raises questions about consent, data ownership, biometric privacy and the limits that should apply to AI based identification.

7.3 Generative AI and Deepfake Abuse

The rapid development of generative AI has made it increasingly easy to produce realistic fake images, videos and voices. Deepfake technology has been used for impersonation, fraud, political manipulation and the creation of inappropriate content. Victims may suffer damage to their reputation, privacy and personal safety even when the content is entirely artificial.

This case is particularly relevant to human dignity because AI can now be used to imitate a person's identity without their consent. It creates a difficult challenge for governments, as they must protect individuals from abuse while also avoiding excessive restrictions on freedom of expression and legitimate uses of generative technology.

8. QARMA (Questions A Resolution Must Answer)

- How can Member States ensure that AI systems do not violate human dignity, privacy, equality and other fundamental human rights?
- What measures should be taken to prevent algorithmic bias and discrimination, especially against vulnerable or underrepresented groups?
- How can transparency, accountability and meaningful human oversight be ensured when AI is used in high stakes decisions such as healthcare, employment, policing and migration?
- What international standards should regulate the collection and use of personal, biometric and behavioural data by AI systems?
- How can the international community promote responsible AI development while also reducing the digital and AI divide between developed and developing States?

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Agenda B: The Citizenship Gap and the Challenge of Statelessness in an Age of Mass Displacement

- 1. Mandate**
- 2. Introduction to the Agenda**
- 3. Key Terminologies**
- 4. History and Background**
- 5. Causes**
 - 5.1. Discriminatory Citizenship Laws
 - 5.2. Conflict, Displacement & State Succession
 - 5.3. Administrative & Legal Barriers
- 6. Impacts**
 - 6.1. Social Impacts
 - 6.2. Economic Impacts
 - 6.3. Political Impacts
 - 6.4. Geo - Political Impacts
- 7. Past Actions**
 - 7.1. UN Action
 - 7.2. International Action
- 8. Major Stakeholders**
 - 8.1. State Actors
 - 8.2. Non - State Actors
- 9. Case Studies**
 - 9.1. Rohingya - Myanmar/Bangladesh
 - 9.2. Syrian Refugees - Syria/Lebanon/Jordan/Türkiye
 - 9.3. Palestinians - Middle East
 - 9.4. Dominican Republic - People of Haitian Descent
 - 9.5. Kuwait - Bidoon
 - 9.6. Sahrawi People - Western Sahara/Algeria
- 10. QARMA**
- 11. Bibliography**

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Introduction To Agenda

“The Citizenship Gap and the Challenge of Statelessness in an Age of Mass Displacement,” addresses a basic human question concerning the status of citizenship. Citizenship means more than just holding an identity card. It refers to the legal affiliation that an individual has in relation to a state in order to achieve nationality and obtain a number of legal rights and protections. In cases where such affiliation is lacking, individuals might find themselves trapped in a citizenship gap, being part of the society without having the proper legal status to fully belong.

The issue of statelessness is not only connected to the lack of documentation. An individual could hold an identity card and still be stateless legally, while other individuals are unable to provide any proof of their national identity because some documentation might be either lost, destroyed or non-existent. The situation becomes more complicated amid the periods of war, displacement of population, border changes, succession of states, and political upheavals.

It is the magnitude of displacement today that makes this issue more complicated yet again. The larger the number of people who are required to cross international borders, the harder it will be to answer questions about nationality, registration at birth, documentation, and legal identity. Children, born in such conditions, will find themselves at risk if their parents fail to prove their nationality or if the law of the country where they take refuge does not allow them to have citizenship. In this case, the initial problem of displacement may turn into a generational cycle of statelessness.

The list of problems is not confined to the absence of a passport. There is much more to the lack of nationality than one cannot travel abroad. It may become hard to get an education, health care services, a job, to buy or own land, participate in politics, and have access to justice and freedom of movement.

In essence, this policy is concerned with the connection between citizenship, legal identity, human rights, displacement, and state sovereignty. The policy requires the international community to question whether states are able to avoid statelessness, protect people who are displaced, provide easier access to civil documents and nationality procedures, and ensure that displacement does not result in statelessness.

Key Terms:

1. Citizenship - Legal connection between an individual and a state, providing him/her with certain rights, protection, and duties.

2. Nationality - Legal link of an individual to a state and determining what state will consider him/her to be one of its nationals.
3. Statelessness - Situation where a person is not considered a national by any state in accordance with its laws.
4. De Jure Statelessness - When an individual is not recognized by any state to be a national of this state.
5. De Facto Statelessness - When a person has nationality on paper but can not get protection associated with it.
6. Citizenship Deficit - Difference between engagement of a person in a social environment and his/her access to nationality and citizenship rights.
7. Mass Displacement - Massive displacement of populations from their homes due to some conflicts, persecution, disaster or crisis.
8. Forced Displacement - Involuntary displacement of individuals or groups from their homes or place of residence.
9. Refugees - People crossing an international boundary due to persecution or threat and not able to return.
10. Internally Displaced Person (IDP) - Someone who is compelled to flee from his/her home but still remains inside the internationally recognized borders of the country.
11. Legal Identity - Formal acknowledgment of a person's identity through civil registration or governmental identification.
12. Birth Registration - The official recording of the birth of a child by an authority, providing evidence of identity.
13. Nationality Law - Legal framework regulating questions of who the nationals are and ways to acquire, retain or lose nationality.
14. Citizenship Deprivation - The loss of citizenship either through governmental decision or through a certain procedure provided by law.
15. Naturalization - A process in which a non-citizen becomes a citizen of a particular state.
16. Jus Soli - The way of acquiring nationality based on place of birth.
17. Jus Sanguinis - The way of acquiring nationality based on parentage or descent.
18. The Right to Nationality - The idea that every individual has the right to possess a nationality and can't be deprived of it arbitrarily.
19. Intergenerational Statelessness - The condition when people do not possess any nationality for several generations.
20. Documentation Gap - The lack of documents necessary for proving identity, nationality or civil status.
21. Civil Registration - The official registration of births, marriages and deaths carried out by the governmental authorities.
22. Non-Refoulement - The principle according to which countries cannot expel people from their territory in cases where this can lead to violation of their life and freedom.

- 23. Dual Nationality - The state when an individual is recognized as the national of two states.
- 24. Naturalization Barrier - The barrier that makes it impossible for an individual to obtain citizenship because of various reasons.
- 25. Stateless Population - The population that does not possess the nationality of any state.
- 26. Voluntary Repatriation - The return of the displaced population to their country of origin voluntarily.

History and Background

The notion of citizenship and nationality emerged with the development of the nation-state concept in the 18th and 19th centuries and established a formalized legal link between people and states. Nevertheless, as each country developed its own law on nationality, some populations were left stateless, without the right to citizenship due to their ethnic, religious, or social status. The issue became especially topical after the First and Second World Wars, when the collapse of empires, the changes in the boundaries of states, the massive movements of population, and persecutions left many people without nationality or state protection.

The international community slowly acknowledged the issue of nationality as a human rights problem. The United Nations General Assembly passed the Universal Declaration of Human Rights in 1948, Article 15 of which declares that every person is entitled to a nationality and shall not be arbitrarily deprived of it. Further development of this issue was seen in 1954 and 1961 Conventions on stateless persons and reduction of statelessness correspondingly.

Even with decolonization, state succession, border changes, and political turmoil that took place since 1945, the problem persisted. Establishment of a new state may require establishment or acquisition of new nationality on the part of the population, whereas gaps in the law or administration can mean exclusion of some people. The dissolution of Yugoslavia in the 1990s showed how changes in the status of states and citizenship systems could lead to serious nationality problems.

Nowadays, mass displacements that occur due to conflicts, persecution, and political instability have led to a revival of the issue of the connection between displacement and statelessness. Different aspects of this issue are illustrated by, among others, the Rohingya, Syrian, Palestinian, Bidoon, and Sahrawi people. People may lose identification papers, face the problem of proving nationality, as well as registering children who were born abroad.

Today, however, the citizenship gap is not limited to statelessness alone. Lack of registration at birth, nationality law discrimination, problems with documentation, and displacement can mean that an individual cannot prove his or her legal identity and obtain basic rights. Thus, the issue has evolved into a global problem involving human rights, migration, humanitarian protection, state sovereignty, and statelessness across generations.

Causes

Discriminatory Citizenship Laws

One of the most enduring reasons for statelessness is discriminatory nationality laws, which have the potential to prevent whole communities from being considered as nationals of states. The discrimination could occur due to ethnicity, race, religion, language, gender, or ancestry. As per UNHCR, around 75% of the world's known stateless population is composed of minorities, thereby showing the link between discrimination and statelessness.

Nationality laws can lead to exclusion in the form of denial of citizenship to specific ethnic and religious groups, differential requirements for naturalization, or restrictions on certain nationals in transferring their nationality to their offspring. One area of discrimination which needs to be mentioned is the gender aspect as when mothers are not able to confer nationality as easily as fathers, children will be left stateless in cases where the father is stateless, unknown, or dead.

Rohingya in Myanmar are an important illustration. The citizenship regime of Myanmar, including the 1982 Citizenship Law, deprived many Rohingyas of citizenship recognition and posed serious difficulties in proving nationality. According to UNHCR statistics, as of the end of 2024, 1.1 million Rohingyas have been forced to leave Myanmar, whereas there were 619,400 Rohingyas living in Myanmar, out of which 41% were internally displaced.

Therefore, discriminatory laws can turn social discrimination into legal discrimination. When individuals lose citizenship status, next generations can automatically become non-citizens too, especially in cases where the child will not get citizenship either from his/her parents or will be unable to prove any other nationality. As for the number of stateless people around the world, as of the end of 2025, there were at least 4.5 million people without any citizenship.

Conflict, Displacement & State Succession

Conflict and mass displacement can interrupt the legal relationship between an individual and the state. In war situations, birth certificates, passports, identity cards, population registers, and other nationality documents might be destroyed, and when moving across the border, displaced persons may lose contact with authorities responsible for determining

nationality. Displacement itself does not cause statelessness but might complicate the process of obtaining or establishing nationality.

Displacement figures of today prove how significant the challenge is. According to UNHCR, at the end of 2025 there were 41.6 million refugees, 9 million asylum seekers and 68.7 million internally displaced people. About 65% of refugees and other persons requiring international protection were hosted in the neighbouring countries, and thus nationality issues often became international problems.

Finally, state succession can also lead to statelessness. At the disintegration of a state, transfer of territories, or formation of new states, a population needs to determine which of the successor states consider them nationals. In case of conflicting nationality legislation of successor states and if certain communities do not have evidence of belonging to one of these states, individuals risk being stateless. UNHCR notes new states and changes in borders as recognized causes of statelessness.

The situation is exacerbated if the minority population is also seen as being connected to an adjacent nation and, therefore, as potentially disloyal to the new state. UNHCR mentions that individuals may find themselves not able to prove the connection to the nation despite the presence of the process of new nationality.

In such cases, conflict and displacement trigger a vicious cycle: the conflict leads to displacement, which in turn prevents access to the process of obtaining nationality through documentation; difficulty proving one's connection to a nation leads to further displacement and puts the children born during that period in the same predicament.

Administrative & Legal Barriers

However, despite being eligible for a nationality, certain procedural and legal obstacles may hinder a person from demonstrating or acquiring his/her nationality. Such obstacles are the lack of birth registration, non-accessibility of civil registers, costly document procedure, complex naturalization process, lack of proof of parentage, and inability to access embassies and governmental offices due to displacement.

Birth registration is especially important in establishing identity, place of birth, and parentage. The UNHCR stresses that the birth registration in itself does not result in nationality, but serves as the basis for establishing nationality under jus soli and jus sanguinis regimes.

The magnitude of the problem is considerable. In 2024, UNHCR assisted over 4.6 million persons in 88 countries in acquiring documents of civil status, identity or legal status.

Moreover, UNHCR stated that in 78 countries, 70% of refugee children under five years had their births registered – implying that a considerable number were not registered at all.

Displacement may intensify these obstacles. It will not be possible for refugees to contact authorities in their home country, obtain necessary documentation, prove paternity or meet other requirements that presuppose continuous presence and access to the state apparatus. According to the UNHCR, the absence of official birth registration and an inability to establish a connection to a particular country of citizenship is listed among the reasons why some people might become stateless.

Legal barriers might emerge due to the existence of flaws or inconsistencies in the law itself. The citizenship of neither one nor another parent could be inherited by a person who was born abroad if the legislation requires different conditions to be met. Likewise, the nationality of stateless parents may not be passed down to their children.

Impacts

Social Impacts

It can turn the condition of lacking nationality into an extended period of social exclusion. In the absence of nationality and legal recognition, persons would experience obstacles to access education, healthcare, formal work, marriage, travel, and other basic needs. According to UNHCR, at the end of 2025 there were 4.5 million stateless people in the world; however, this figure does not show the whole reality since in many countries statistics is not reliable.

Children are especially vulnerable to this problem since they can experience difficulties with gaining identity documents due to the fact that they have not been registered or parents cannot claim any nationality. It results in intergenerational statelessness, meaning that social exclusion becomes inherited. Mass migration makes the situation more problematic: 123.2 million persons were forced to move at the end of 2024 including refugees, asylum-seekers, and internally displaced persons.

Social exclusion can become the reason for experiencing discrimination, poverty, and reliance on humanitarian aid. At the end of 2024, according to UNHCR there were 4.4 million stateless people, while 47,200 people gained nationality or confirmed theirs.

Economic Impacts

Statelessness poses substantial economic difficulties since nationality or recognized legal status becomes an important prerequisite to gain access to formal jobs, banking, property rights, business registrations and other social protections. According to UNHCR, statelessness can limit access to the formal labor market, to open a bank account, purchase property and engage in other economic activities.

Thus, stateless persons end up being engaged in informal, insecure, unprotected employment. As a result, they not only become less economically secure but cannot utilize their skills and work potential for the country's economic development. Stateless children also might not get education, which will make it more difficult for them to be employed in the future.

In case of mass displacements, even more strain is put on limited economies. By mid-2024, 122.6 million people have been forced to displace in the world, 87% of whom reside in low- and middle-income countries. It means that host governments should also meet increased needs in education, health care, housing, documentation and social services provision. If the period of displacement lasts long, it can create additional budget strain since humanitarian aid becomes necessary not for months but years; 66% of refugees under UNHCR mandate have been displaced.

Political Impacts

Statelessness can lead to systematic political exclusion due to the fact that nationality plays an important role in determining voting rights, political representation, participation in political offices and civic organizations. Thus, a person may reside permanently within the territory of the state without having the appropriate status to be involved in decision-making regarding his or her community. This means that there is a difference between being governed by the state and participating in its political process.

When nationality laws exclude certain ethnic, religious or linguistic groups, citizenship will be associated with political exclusion. Exclusion will negatively affect the access to state institutions, procedures for documentation and legal remedies as well as will make certain communities invisible in national policies. According to UNHCR, there are 4.5 million people who are stateless in the world as of the end of 2025, but this number is higher due to inadequate reporting.

Forced displacement can further lead to political exclusion. As of the end of 2024, 123.2 million people have been forcibly displaced all around the world, which means that millions of people will face questions of nationality and representation. Political exclusion may also become intergenerational in cases where children will inherit statelessness.

Geo - Political Impacts

Statelessness makes a domestic citizenship challenge turn into a regional and international matter because stateless people are likely to seek refuge abroad. The host states are required to give documents, education, medical services, security, and humanitarian aid to the people that have no country of nationality or that belong to a state which cannot be considered as their official citizenship.

The volume of displacements shows how challenging it might be. According to UNHCR statistics, at the end of 2024, there were 123.2 million forcibly displaced people. Moreover, according to the most recent statistics by UNHCR, there were 4.5 million stateless people at the end of 2025. In mid-2024, 87 percent of forcibly displaced people lived in developing countries, and 66 percent of refugees under UNHCR's mandate were experiencing more than five years of displacement.

Thus, statelessness creates additional challenges for the process of repatriation, resettlement, naturalization, border control, and regional treaties. Displaced people do not have a state to consider them as nationals. However, at the same time, the neighbouring states are faced with prolonged administrative and humanitarian challenges.

Past Actions

Past UN Action

The United Nations has addressed statelessness through a combination of legal standards, institutional programmes, documentation initiatives and international commitments. The 1954 Convention relating to the Status of Stateless Persons established minimum standards concerning education, employment, identity documents and access to courts, while the 1961 Convention on the Reduction of Statelessness created obligations intended to prevent statelessness, including safeguards for children born without another nationality. In 1996, UNHCR received a formal mandate to address statelessness, later expanding its work through nationality-law reform, birth registration and technical assistance. The 2014 #IBelong Campaign, launched by UNHCR, established a ten-point Global Action Plan aimed at ending statelessness by 2024, including resolving major situations of statelessness, preventing children from becoming stateless, eliminating gender discrimination in nationality laws and improving civil registration. The General Assembly's Resolution 68/152 (2013) reaffirmed the right to nationality and encouraged states to prevent arbitrary deprivation of nationality. In 2018, the Global Compact for Safe, Orderly and Regular Migration included Objective 4, calling for legal identity and adequate documentation. UN agencies, particularly UNHCR and UNICEF, have consequently supported birth registration, nationality determination and documentation programmes, although implementation remains dependent upon national governments.

Past International Action

International responses to statelessness have been pursued via agreements, regional instruments, humanitarian programs, and state-driven nationality policies. The 1954 Statelessness Convention and 1961 Convention on the Reduction of Statelessness stand out as the major international legal instruments aimed at providing legal protection to stateless people and preventing new cases of statelessness. International organizations have been helping states in streamlining nationality procedures, setting up registration systems, and locating populations without proper documentation. The Council of Europe

Convention on Nationality (1997) helped set higher regional standards through its provisions related to acquisition of nationality, renunciation of nationality, and protection against statelessness. In Africa, the African Union's Protocol on the Specific Aspects of the Right to a Nationality and the Eradication of Statelessness in Africa adopted in 2024 is another example of such efforts at the regional level to close nationality gaps. There have also been activities on the part of the Global Forum on Statelessness, civil society organizations, and international legal networks in terms of conducting research, providing advice, and implementing projects. Some states have been pursuing nationality reform and naturalization programs and carrying out identification and documentation campaigns thus showing that such problems are solvable through law and administration.

Major Stakeholders

State Actors

States continue to be the main actors behind determining nationality, but discriminatory citizenship policies and practices by the states might lead to a widespread situation of statelessness. The 1954 Convention relating to the Status of Stateless Persons set a minimum standard of rights for stateless persons, while the 1961 Convention on the Reduction of Statelessness aimed at preventing statelessness, especially of children. Nonetheless, according to recent statistics published by UNHCR, millions of stateless people exist around the world, and some of the most important groups of stateless people include the Rohingya, Bidoon, and Dominican people of Haitian origin. The Citizenship Law in Myanmar, adopted in 1982, de facto made the Rohingya stateless, and now there are over 1 million of Rohingya refugees in Bangladesh, mainly from Myanmar. Another good example of how documentation and citizenship laws can create a situation of statelessness is provided by Côte d'Ivoire with its long-lasting crisis of nationality. Attempts of the states to solve the problem have included such steps as birth registration, nationality law changes and naturalization programs.

Non - State Actors

The leading role in international efforts has been played by UNHCR, which has assisted states in drafting their legislation on nationality, registering and documenting persons. NGOs like Refugees International and Norwegian Refugee Council have highlighted problems faced by persons in accessing citizenship. UN agencies such as UNICEF have emphasized universal birth registration, mainly because of the increased vulnerability of unregistered children to statelessness. Civil society organizations have also helped in providing legal aid and documentation to marginalized populations. Nevertheless, non-state actors cannot grant nationality; all these processes require action from the government.

Case Studies

Rohingya - Myanmar/Bangladesh

The Rohingya can be considered an example of a particularly clear convergence of statelessness, discriminatory nationality laws and displacement. Myanmar's 1982 Citizenship Law established a citizenship system which is often connected with exclusion of the Rohingya, who have long suffered from restrictions on their documentation, movement and obtaining citizenship. UNHCR estimated that the Rohingya are the world's biggest known stateless group: by mid-2025 there are about 1.8 million stateless or undetermined Rohingya. By the end of 2024, the number of Rohingya amounted to about 1.8 million and about 79% of them were refugees, asylum-seekers and internally displaced.

More than 1 million Rohingya refugees have been recorded in Bangladesh as of the end of 2025, mostly residing in Cox's Bazar. August 2017 violence led to the biggest migration wave, when more than 740,000 Rohingya fled to Bangladesh. The scale of this event makes it the major case study for intergenerational statelessness.

Syrian Refugees - Syria/Lebanon/Jordan/Türkiye

The case of Syrian refugees proves that protracted periods of displacement cause continuous legal-identity vulnerability. The ongoing crisis that has lasted for more than 13 years resulted in displacement of millions of people from Syria. Moreover, due to destroyed infrastructure and lost civil records and inability to access Syrian officials displaced persons faced difficulties in documenting their births, marriages, property and family ties. According to UNHCR, by December 2025, there were 4.3 million registered Syrian refugees in neighbouring countries, primarily in Türkiye, Lebanon, Jordan, Iraq and Egypt, along with 6.5 million of internally displaced people in Syria.

It is particularly problematic for children born in other countries: lack of registration and documentation complicates proving the fact of parentage and nationality in the future. Lebanon, Jordan and Türkiye have been hosting Syrians for more than a decade which causes protracted problems regarding registration, residency and access to education and services. As per UNHCR's regional planning in 2025, there are about 1.4 million Syrians among those assisted in Lebanon and over 503,000 in Jordan. The case of Syrians illustrates that conflict-related displacement may cause protracted legal-identity vulnerability even when people keep Syrian nationality formally.

Palestinians - Middle East

The Palestinian example shows how complicated it is to understand the correlation between displacement, nationality, legal status and refugee status. Mass displacement caused by the Arab-Israeli war of 1948 resulted in Palestinian refugees who still remain displaced in the Middle East region generation after generation. UNRWA was founded in 1949 and provides assistance to the Palestine refugees, and by the end of 2025 6 million of Palestine refugees will receive such kind of support due to its mandate.

The legal status of Palestinians is different because some Palestinians hold nationality in certain states and some Palestinians do not hold nationality that guarantees the same rights as citizenship does. In addition, territorial and political status of the West Bank, including East Jerusalem, and Gaza complicates the issue of documentation, residence and movement. The UNHCR distinguishes Palestine refugees under the mandate of UNRWA and Palestine refugees under its own mandate; thus, one should take into consideration that statistics should be read cautiously. The Palestinian case proves that being a refugee and being stateless does not coincide, because people may be refugees but not be stateless and vice versa. Thus, nationality, documentation and durable solutions become important for such refugees.

Dominican Republic - People of Haitian Descent

This situation showcases how changes made in nationality laws could lead to citizenship disputes on an extensive scale among people who have foreign ancestry. This problem has mainly been of concern to those citizens of the Dominican Republic who had Haitian origin, with their families having resided in the Dominican Republic for many years. One of the key factors that played a role was Constitutional Court Judgment 168-13, issued in 2013. It was a decision in which interpretation of the nationality provisions had been made in regard to people born in the Dominican Republic, while their parents' migratory status had been considered as irregular. Later, Law 169-14 had provided certain regularization procedures and mechanisms for differentiating among the cases.

This case was considered as a serious statelessness problem by UNHCR. In fact, many people ended up lacking Dominican nationality and were unable to get their civil documentation. In this case, one can see the significance of nationality safeguards during the legal transition period – citizenship disputes may emerge even in cases when individuals were born in the country and have no practical relation to any other state.

Kuwait - Bidoon

One of the most pertinent examples of prolonged statelessness in the Gulf region is the case of the Bidoon of Kuwait. The Bidoon generally denotes people who do not hold Kuwaiti nationality, but according to the Kuwaiti authorities, many of them are "unlawful residents" and not stateless at all. The latest UNHCR country profile estimates the number of stateless people in Kuwait at around 92,000 individuals.

The problem emerged with the declaration of independence in 1961, with some of the people not being registered as citizens or having their nationality status omitted. In the decades since, failure to register nationality led to problems in receiving various documents, securing work, studying, accessing healthcare, getting married and traveling. Kuwait is not a signatory to the 1954 Convention relating to the Status of Stateless Persons and the 1961 Convention on the Reduction of Statelessness.

Previously, the UN Human Rights Committee expressed concern over the failure to register stateless Bidoon and the limitations of their right to document and enjoy other social benefits.

Sahrawi People - Western Sahara/Algeria

The Sahrawi case concerns territory disputes, lengthy refugee displacement and issues related to legal protection. A number of Sahrawi refugees left Western Sahara due to the conflict that emerged in the 1970s; among the refugees, a large group settled in camps near Tindouf, Algeria. UNHCR identifies Sahrawi refugees in Algeria on a prima facie basis, meaning they are considered as refugees collectively and not individually.

According to UNHCR's 2024 report on Algeria, the Sahrawi refugee camps need continued protection and assistance; however, authorization is necessary according to Algerian regulations for refugees to leave the Tindouf area and camps. The dispute over Western Sahara complicates any solutions because issues of territory, political status and return remain unsolved.

The case is interesting from the perspective of a statelessness study because a combination of factors, such as refugee status, nationality and territory sovereignty, does not necessarily lead to the same result in terms of law – the displaced Sahrawis might have different situations regarding documentation and nationality depending on their particular cases. Displacement over generations creates problems for registration and documentation of families.

QARMA

1. How do states avoid and alleviate statelessness through the reform of nationality laws that are discriminatory, especially those that are discriminatory according to ethnicity, religion, gender, ancestry or place of birth?
2. What immediate solutions can be employed in order to ensure that the displaced or stateless populations receive legal identity and documentation, such as birth certificates, nationality papers, marriage certificates and other forms of documentation?
3. How do states ensure the registration of all births of children born during the course of displacement especially if their parents have no identity documents or are refugees or unable to contact the authorities from their country of origin?
4. What international and regional instruments can help in establishing the nationality of people whose nationality is disputed or records destroyed or where they are caught up in conflicting nationality laws?
5. How do displaced or stateless populations access the services including education, health care, employment, housing, financial and social services without nationality becoming an immediate obstacle?

6. What measures need to be put in place to safeguard against inter-generational statelessness, especially for children born to stateless parents or in displacement situations?
7. How can host nations, countries of origin, UN organs, and regional bodies cooperate in promoting voluntary return, local integration, or resettlement without placing individuals at risk of discrimination, persecution, or fresh displacement?
8. What systems can be put in place to provide for restitution or restoration of property and/or rights where displacement has led to loss of homes/land/identity documents/nationality papers through conflict?
9. How can UNHCR, OHCHR, UNICEF, IOM, civil registration authorities, and the concerned regional organs work together in putting in place a robust system of identification of stateless groups and nationality statistics to track progress in the reduction of statelessness?
10. What sort of international framework would guarantee that mass displacement, alterations in territory, state succession, and changes in nationality law provisions do not generate new stateless persons, while maintaining respect for state

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